

GENERAL SPECIFICATION G2.19

Ordering Materials

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G2.19 ORDERING MATERIALS

G2.19.1 Ordering Materials

The Contractor shall place his orders for specified materials at the earliest possible date after notification of acceptance of his tender or at such times as may be specifically stated elsewhere for any particular material. If, in the opinion of the S.O. the Contractor by his failure to order any specified materials, or by his failure to deliver to the site any specified material within the time stated for same, causes interruption or delay in the progress of the Works, then in either case, the S.O. may be at liberty to purchase such specified materials in whatever quantities he deemed necessary and at the rates current in local markets at the time of purchase and all charges in connection therewith including delivery charges shall be borne by the Contractor and shall be deducted from money due or to become due to him under this Contract and neither profit nor extension of time shall be allowed to the Contractor in respect of such items.

G2.19.2 Items Specified By Name

- (a) Where a material, article, product or equipment is specified by trade name, brand, catalogue reference or manufacturer's name, the Contractor shall use only such material, article, product or equipment as specified. Where a list of alternatives is given in the specification, the Contractor may use any of the listed alternatives.
- (b) Where the phrase "or equal and approved" appears after a material, article, product or equipment specified by trade name, brand, catalogue reference or manufacturer's name, the Contractor may propose substitutes for consideration in his tender submission, together with such drawings, specifications, samples, manufacturer's literature, performance data and test results, and cost proposal and other information as are necessary for the Employer to evaluate the proposed substitutes completely.
- (c) If the Contractor did not propose any substitute for the consideration of Employer in his tender, then he shall be bound to provide the listed item. If a substitute proposed by the Contractor is not in compliance with the specifications, his tender may be rejected, unless in his tender submission, he has clearly confirmed that he would provide the listed item should the proposed substitute be found unacceptable.
- (d) The naming of any commercial name, trademark or other identification shall not be construed to exclude any item or manufacturer not mentioned by name or as limiting competition, but shall establish a standard of quality only. An item shall be considered equal to the item so named or described if:
 - (i) It is at least equal in quality, durability, appearance, strength and design;
 - (ii) It will perform at least equally the specific function imposed by the general design for the work being contracted for or the material being purchased;
 - (iii) It conforms substantially, even with deviations, to the detailed requirements for the items in the Specifications and such deviations are approved by the S.O. at his discretion; and
 - (iv) It has a proven record of service under operational conditions.

G2.19.3 Substitution after Award of Contract

- (a) After the award of the Contract, the Contractor shall not substitute any material, article, product, or equipment specified (hereinafter called the “specified item”) in the Contract without the prior written approval of the S.O..
- (b) If the Contractor wishes to propose a substitution for a specified item, he shall make a written request to the S.O., stating the reasons (as supported by documentary evidence) for the request. He shall also provide such drawings, specifications, samples, manufacturer’s literature, performance data and test results, and other information as are necessary for the S.O. to evaluate the proposed substitution completely.
- (c) The S.O. may require tests of all materials submitted to establish quality standards at the Contractor’s expense. All directions, specifications and recommendations by manufacturers for installation, handling, storing, adjustment and operation of their equipment shall be complied with and responsibility for proper performance shall rest with the Contractor. The Contractor shall be responsible for all redesign costs resulting from the inclusion of the substituted material, article, product or equipment into the Works.
- (d) Any deviation from or non-compliance with the contract requirements shall be highlighted and brought to the attention of the S.O., failing which the Contractor shall be deemed to warrant that the proposed substitute will comply with contract requirements.
- (e) The Contractor shall also submit details of the comparative prices for the specified item and the substitute to the S.O., and indicate the savings accruing to the Employer. For the avoidance of doubt, the Contractor is bound to provide the specified item under the Contract. The decision whether or not to consider the request for substitution and to accept or reject it is entirely a matter of discretion for the S.O. and the Employer whose decision shall be final and binding. Any delay or alleged delay on the part of the S.O. or the Employer in considering the Contractor’s request for substitution or in coming to a decision shall not entitle the Contractor to an extension of time or additional payment.

END OF SECTION